

Hartsfield Business Bank

Compliance Guardrails

Fintech and banking-specific. Applies to all marketing copy, social media, email, paid media, and any public-facing communication.

FDIC Disclosure Rules Every piece of marketing that references deposit accounts must include the FDIC member disclosure. Acceptable form: "Member FDIC" as a standalone label, or the full disclosure statement in body copy. It cannot be implied, abbreviated differently, or omitted from any deposit product communication — including social media posts that reference savings or checking accounts.

APY Disclosure Requirements Any reference to an Annual Percentage Yield — including in headlines, social captions, or ad copy — must be accompanied by:

- The current APY as of a stated date
- A statement that the rate is variable and subject to change
- Minimum balance requirements to earn the stated rate, if applicable
- The disclosure cannot appear only in a footnote if the rate appears in a headline

Prohibited: "Earn up to 4% on your business savings" without the full disclosure in the same unit of communication.

Prohibited Terms in Deposit Product Marketing The following terms trigger regulatory review or are outright prohibited under FDIC and FTC guidelines:

- "Guaranteed rate" or "locked rate" (unless referencing a CD with a stated term)
- "Insured by the government" (must specify FDIC, not generalize)
- "Safe as a government bond" or similar comparative safety claims
- "No risk" or "zero risk"
- "Unlimited FDIC coverage" (coverage limits apply per depositor, per ownership category)

CAN-SPAM and Email Compliance All marketing emails must include:

- Physical mailing address of Hartsfield Business Bank
- Clear unsubscribe mechanism
- Accurate sender identification — no misleading subject lines
- Subject lines may not imply urgency that doesn't exist ("Your account has been flagged" is prohibited as a marketing hook)

Endorsement and Testimonial Rules (FTC) Customer testimonials must reflect typical results or include a disclosure that results are not typical. No testimonial may be fabricated or attributed to a composite customer. All testimonials require signed release on file before publication.

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Social Media Specific Any rate, fee, or product claim made on social media is subject to the same disclosure requirements as print or digital advertising. "DM us for details" does not satisfy disclosure requirements — the material claim and its disclosure must appear in the same post.